

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 23, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel (via Zoom) Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. City Clerk Kris Jones noted agenda item #14 was inadvertently referred to the Public Services Committee and is instead referred to the Finance Committee. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Roybal, and pursuant to support received by Mr. Segrave and Dr. Aldrich, agenda item #10 was removed from the Consent Agenda. Upon request by Mr. Roybal, and pursuant to support received by Dr. Aldrich and Mr. Segrave, agenda item #17(b) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 9, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to receive comments and input regarding the intent of the City of Cheyenne to submit an application for funding for the Wyoming Business Council’s Business Ready Community Grant and Loan, Managed Data Center Cost Reduction Grant not to exceed \$2,250,000.00 for reducing the communications and utility costs for three years through the reimbursement of accrued utility expenses and encouraging employment and private investment by Project Bison. There being no comments or input, and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential-Medium Density for land located north of and adjacent to Miller Lane, between Sunset Drive and Townsend Place. Tammy Plunkett, adjacent property owner, expressed concerns with the proposed zone change involving possible drainage and sewer issues, increased traffic, proposed type of development and the planned number of additional townhome residential units. Ms. Plunkett expressed concerns with the proposed removal of Dean Court, which is the only access road that goes along Miller Lane, relating to emergency medical services (EMS) and police access to the area. She noted she believes there is an error in the city’s staff report relating to blocks mentioned in the development and requested consideration to keep the current zoning.

Brad Emmons, AVI, and developer for the project, provided information about the conceptual plan for the area which includes a twin home development with a shared open space access area. Mr. Emmons explained the purpose of requesting the NR-2 zoning is to allow for shared open space, not for an increase of residential units, noting units will have a deck and will share the common open space. Mr. Emmons advised this is a new development concept, an HOA will maintain landscaping and the plat will go before the governing body for approval. Upon inquiry, Mr. Emmons reported a traffic study is not required as the area is below the threshold requirement. Mayor Collins noted the development is currently in the design phase for drainage and will likely include 2 detention ponds. Concerns were raised related to increase of area traffic and street, gutter, and sidewalk improvements/remediation. Mr. Emmons reported he has met with the City's Engineering Department on the concerns and provided information on existing area curb, gutter and sidewalks and noted some alternatives are being reviewed in terms of curb and gutter. Upon inquiry, he reported the proposed access easement is 28' which has been vetted with the city's Fire Department for being acceptable for access. Following additional inquiry, Mr. Emmons provided information on options that were discussed relating to sanitation services and placement and types of waste receptacles relating to development density and building type. Mr. Emmons advised open space will be for HOA property owners and their guests and is not intended for public use. Leroy Baluska, adjacent property owner, requested consideration to keep the current zoning and noted concerns including infill development, water runoff and drainage issues, increased traffic and design concept. Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. It was noted by members of the governing body that while understanding the concerns raised, the property could be developed with 18 multi-residential units without the proposed zone change to NR-2 which is for the purpose of allowing for open space. It was further noted that the developer will have to come back with the plat and prove concerns have been taken into consideration. Explanation was provided regarding the purpose of infill development which is intended to fill open unused space. Mr. Emmons clarified that although there may be a need to bring in extra dirt for the development, the intent is to keep the area as close to what is existing as possible. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Cook and Mr. Laybourn voting "no".

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) to clarify and better facilitate cottage lot development – referred to Public Services Committee. (Sponsor – Dr. Rinne)

RESOLUTION – Approving the Hitching Post Urban Renewal Plan and the Hitching Post Urban Renewal Project Pursuant to Wyoming Statute §15-9-110, and approving the creation of a new Hitching Post Urban Renewal Authority Special Revenue fund. Dr. Rinne moved to adopt, seconded by Mr. Cook. Dr. Rinne moved to amend by substitute dated August 10, 2021, seconded by Mr. Segrave. Mayor Collins explained the substitute changes the funding category to a "fiduciary" fund instead of a "special revenue" fund. Motion to amend by substitute carried. Voting "yes" – all members of the governing body. Appreciation was expressed to the governing body and city staff for their efforts on the plan for the community and it was noted it will be helpful for redeveloping challenging areas. Main motion as amended carried. Voting "yes" – all members of the governing body. (#6167)

RESOLUTION – Authorizing submission of an application to the Wyoming Business Council under the Business Ready Community Grant and Loan Program for a Managed Data Center Cost Reduction Grant not to exceed \$2,250,000.00 on behalf of the governing body of the City of Cheyenne. Reporting for Finance Committee, Mr. Roybal moved to adopt, seconded by Dr. Aldrich. Mr. Roybal explained the reason for removing this item from consent agenda was so the affiliated public hearing could take place prior to adoption of the resolution. Motion carried. Voting “yes” – all members of the governing body. (RES #6168/CONT #7395)

[CA] RESOLUTION – Authorizing the City of Cheyenne Board of Public Utilities to discharge uncollectible debts in the amount of \$1,138.02 pursuant to Wyo. Stat. §16-4-502. Motion (per Consent Agenda) carried. (#6169)

RESOLUTION – Reappropriating the Fiscal Year 2021 Budget of the City of Cheyenne according to the provisions of W. S. §16-4-112 & §16-4-113. Mr. Roybal moved to adopt, seconded by Mr. White. Mr. Roybal moved to amend by substitute dated August 11, 2021, seconded by Mr. Segrave. Mayor Collins explained the substitute increases the Fire Department budget using excess funds in the Police Department budget for necessary expenses. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6170)

[CA] RESOLUTION – Permitting the possession of open containers within the Downtown District Boundaries for the ‘Golf, it’s the Least of our Problems’ Golf Tournament to be held on September 25, 2021 – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing submission of the Nita M. Lowey 21st Century Community Learning Centers grant application to the Wyoming Department of Education on behalf of the Governing Body of the City of Cheyenne for continuation of grant funding in year four for afterschool programing and necessary support items (Nita M. Lowey 21st Century Grant Funding) – referred to Finance Committee.

[CA] RESOLUTION – Instructing the City Clerk to defer acceptance of applications for the one (1) additional Retail Liquor License, as authorized to the City pursuant to provisions of Wyo. Stat. § 12-4-101, until a time frame in which to submit applications has been determined by the Governing Body of the City of Cheyenne – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] Contract between Laramie County and the Office of Youth Alternatives for on-call crisis center services in the amount of \$69,000.00 (revenue to City). Motion (per Consent Agenda) carried. (#7389)

[CA] Contract between the City of Cheyenne, Community Recreation & Events, and the Officials for Fun Club to officiate the 2021-2022 youth volleyball, adult volleyball, and adult co-rec volleyball programs (Recreation Programs Fund). Motion (per Consent Agenda) carried. (#7390)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization and LSC Transportation Consultants, Inc., Colorado Springs, CO, for the 2022 Transit Development Plan (MPO Federal Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$99,711.00). (#7391)

[CA] Professional Services Agreement between the City of Cheyenne and Econolite Systems, Inc., Anaheim, CA, for the 2021 Advanced Traffic Management System (ATMS) Software Project (2015-2018 and 2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Volunteers of American Northern Rockies, Alcohol Receiving Center, Sheridan, WY, to provide alcohol and drug detoxification services to individuals (General Fund) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority to provide supportive senior services (General Fund) – referred to Finance Committee.

[CA] Contingency and Development Agreement between the City of Cheyenne and Project Bison to perform duties as outlined in the Wyoming Business Council Business Ready Community Grant Program for a Managed Data Center Cost Reduction Grant to recoup accrued utility expenses (WBC Managed Data Center Grant) – referred to Finance Committee.

[CA] Contract Modification #6 to Contract #5930 between the City of Cheyenne and Kone, Inc., Denver, CO, for the addition of an elevator located at the Judge Joseph M. Carey Cheyenne City Center Building (General Fund). Motion (per Consent Agenda) carried (in an annual amount of \$2,437.56). (#5930)

Contract Modification #2 to Contract #7256 between the City of Cheyenne and Dan Hart Patrol Service, LLC, Upton, WY, for the Happy Jack Landfill Phase 2, Cells 1, 2 and 3 Excavation Earthworks Project for an increase in rock excavation quantities and addition of Duke Energy Maintenance Road relocation (Solid Waste Fund). Mr. Roybal moved to approve in an amount not to exceed \$1,107,538.00, seconded by Mr. White. Mr. Roybal moved to amend with the \$237,538.00 amount noted for replacement of the damaged road be approved only to the extent approved by the City Attorney following negotiations with Duke Energy over a proposed cost-share, seconded by Mr. Segrave. Mayor Collins explained the amendment is due to a road that had to be removed at the landfill that will need replaced and the amendment will allow for negotiations for funding of the road replacement. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. Appreciation was expressed to City Attorney Michael O’Donnell for being willing to pursue a potential for recouping expenses relating to the reconstruction of the road. Main motion as amended carried. Voting “yes” – all members of the governing body with the except of Mr. Johnson voting “no”. (#7256)

[CA] Contract Modification #1 to Contract #7072 for the Hazard Mitigation grant from the Wyoming Office of Homeland Security, in the amount of \$191,430.85 for Dry Creek Drainage Planning by extending the term of the grant agreement to August 5, 2022 (DHS FEMA Grant-Dry Creek Drainage Plan). Motion (per Consent Agenda) carried. (#7072)

[CA] Contract Modification #1 to Contract #7309 between the City of Cheyenne and Synergy Construction, LLC, Lovell, WY, for the Happy Jack Landfill Front Entrance and Scale House Project to build an on-site scale house building (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$62,730.80). (#7309)

[CA] Contract Modification #1 to Contract #6445 between the City of Cheyenne and AVI Professional Corporation, Cheyenne, for additional necessary design and construction management services for the 17th Street Lighting Project (Specific Purpose Option Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-1-22 for furnishing two (2) new 2021 4WD 72” front-mount mowers for City of Cheyenne, Community Recreation & Events Department (2015-2018 1% Sales Tax and Specific Purpose Sales Tax Funding). Motion (per Consent Agenda) carried (accepted bid from Heartland Kubota, Sheridan, WY, in an amount not to exceed \$78,580.00).

[CA] Consideration of Bid #S-23-21 for a contract between the City of Cheyenne and Kaiser Corporation d/b/a Kaiser Flooring, Cheyenne, for the Municipal Building 3rd Floor Carpet Replacement Project (General Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$73,233.00). (#7392)

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Reappointment of Lori Schoene and Rita Meyer to the Brownfields Revolving Loan Fund Committee. Mr. Segrave moved to approve, seconded by Mr. White. Appreciation was expressed by members of the governing body for Ms. Meyer and Ms. Schoene for their efforts and willingness to serve the community. It was further noted that the individuals bring a lot of dedication and knowledge to the committee. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Appointment of Katie Brady, Bruce Heimbuck, Craig Kerrigan, Pete Laybourn, Anthony Ortiz, Stephanie Reece, and Wendy Volk, to the Downtown Development Authority. Dr. Aldrich moved to approve, seconded by Mr. Segrave. Mr. Laybourn advised that although he does not believe he has a conflict restricting him from voting on the appointments, for the purpose of public perception, he will be abstaining from voting. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments) and Mr. Laybourn who abstained.

Under other business:

Announcement was made that due to City offices being closed for the Labor Day holiday on Monday, September 6, 2021, regularly scheduled city Council Committee meetings will instead be held in the Municipal Building, Room 104, 2101 O'Neil Avenue, Cheyenne, Wyoming, and viz electronic conference meetings as follows: Finance Committee will meet Tuesday, September 7, 2021 at Noon and Public Services Committee will meet Wednesday, September 8, 2021 at Noon.

Memorandum of Agreement between Robin and Debbie Courtier, the City of Cheyenne, and the Wyoming Department of Transportation for the study of downstream storm water problems. Mayor Collins advised the city received the memorandum of agreement (MOA) this afternoon with signatures and noted this agreement is somewhat different than the prior agreement. Mayor Collins referred the item to Public Services Committee.

Appointment of Stefanie Boster as City Attorney for the City of Cheyenne. Mayor Collins announced Michael O'Donnell, current City Attorney, will retire on September 3rd and that he is pleased Ms. Boster has agreed to accept the position of City Attorney. Mayor Collins advised Ms. Boster comes to the City with unique ideas as she was a previous council member for the City of Casper and has several years of valuable experience practicing law. Mr. White moved to approve, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment). City Clerk Kris Jones administered the oath of office to Ms. Boster.

Mayor Collins expressed appreciation to Mr. O'Donnell for his years of service to the City and advised this is his last council meeting as City Attorney. Mayor Collins wished Mr. O'Donnell and his wife the best in their upcoming retirements.

Mr. Laybourn reported on a recent clean-up at the underpass of Lincolnway and Missile Drive, adjacent to MLK Park, and expressed appreciation to Councilman Johnson, city staff members Eric Fountain, Compliance Director, David Singleton, Assistant City Attorney, and members of his family, John Palmer, Compliance Department, and members of the public Cameron Karajanis, Brock Lawrence and Holly Frank. He explained the need for members of the governing body and the public to be aware of the magnitude of the problem along Crow Creek and that he feels the issue needs to be taken more seriously. He advised this type of inhabitation has serious environmental impacts to the nearby Crow Creek. He further noted that when homeless encampments occur it is hard to undo them as it is emotional for everyone involved especially when children are affected. Mr. Laybourn requested consideration for the city to begin discussions with the Wyoming Department of Transportation for the purpose of developing a partnership in these types of areas to find some sort of solution and noted that if not, the issues will continue to occur. Further discussion included the on-going efforts to redevelop blighted areas and the need to provide reasonable housing options to the homeless. Mr. Johnson expressed appreciation to the Police Department for their assistance during the clean-up.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:00 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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